Supreme Court, U.S.
FILED
JUN 9 1999
CLERK

No. 98-822

IN THE
Supreme Court of the United States

FRIENDS OF THE EARTH, *et al.*,
Petitioners,

v.

LAIDLAW ENVIRONMENTAL SERVICES (TOC), INC.,
Respondent.

On Writ of Certiorari to the United States Court of Appeals for the Fourth Circuit

SUGGESTION OF MOOTNESS

DONALD A. COCKRILL *
NANCY W. MONTS
OGLETREE, DEAKINS, NASH, SMOAK & STEWART, P.C.
The Ogletree Building
300 North Main Street
P.O. Box 2757
Greenville, SC 29602
(864) 271-1300
Counsel for Respondent
* Counsel of Record

Dated: June 9, 1999

WILSON - EPES PRINTING CO., INC. - 789-0096 - WASHINGTON, D.C. 20001

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SUGGESTION OF MOOTNESS

Pursuant to Rule 21 of the Rules of this Court, Respondent Laidlaw Environmental Services (TOC), Inc. ("Laidlaw") respectfully suggests that this case has become moot and that the Writ of Certiorari should be dismissed. This issue of mootness is in addition to the substantive issues of standing and mootness already before the Court. Petitioners raised the specific issue in their brief of whether closure of Respondent's facility moots the case. The Petitioners did so, however, without support in the record, thereby precipitating this submission in order to provide the Court with additional facts necessary for an evaluation of this issue. Respondent further respectfully requests that the Court suspend the remainder of the briefing schedule pending the Court's disposition of this Suggestion.

BACKGROUND

The questions presented in this case pertain to the issue of whether a citizens group has standing to bring a citizens suit under Section 505 of the Clean Water Act, 33 U.S.C. 1365(a), and whether that suit becomes moot because the remedy sought—civil penalties—will not redress the alleged injury pursuant to this Court's decision in *Steel Company v. Citizens for a Better Environment*, 523 U.S. 83 (1998). The question of a citizen plaintiff's entitlement to attorneys' fees or litigation costs in a moot case is also before this Court.

These questions arise out of a citizens suit filed by Petitioner[1] Friends of the Earth ("FOE") on June 12, 1992 against Respondent Laidlaw claiming injury caused by Laidlaw's alleged ongoing violations of a National Pollutant Discharge Elimination System ("NPDES") permit that regulated wastewaster discharges from an incinerator at Laidlaw's Roebuck, South Carolina facility. The district court found that, although Laidlaw had made good faith efforts to achieve compliance prior to the filing of the complaint, and that no harm to the environment had been caused by the permit violations, Laidlaw should pay a statutory penalty of $405,000.00 for NPDES permit violations occurring mostly before and, in a few minor circumstances, after the institution of the lawsuit. *Friends of the Earth, Inc. v. Laidlaw Environmental Services (TOC), Inc.*, 956 F. Supp. 588, 610 (D.S.C. 1997) (J.A. 180-181). Injunctive relief was denied in its entirety. *Id.* at 611 (J.A. 183). On appeal, FOE abandoned its request for injunctive relief and sought only an

[1] The other Petitioners, Sierra Club and CLEAN, Inc., were allowed to join the citizens suit several months later (by which time Laidlaw was in substantial compliance) despite the fact that neither filed the 60-day notice letter required by the Act, 33 U.S.C. 1365(b).

increase in the statutory civil penalties. The Fourth Circuit reversed, holding that under this Court's ruling in *Steel Company v. Citizens for Better Environment* the case had become moot because civil penalties—which are payable to the U.S. Treasury and not to citizen plaintiffs—would not redress any injury claimed to have been suffered by the Petitioners as a result of alleged ongoing NPDES permit violations. *Friends of the Earth, Inc. v. Laidlaw Environmental Services (TOC), Inc.*, 149 F.3d 303, 306-07 (4th Cir. 1998).

After the Fourth Circuit issued its decision on July 16, 1998 but before this Court granted *certiorari*, NPDES discharges at the Roebuck, South Carolina facility were *permanently* discontinued at 7:00 a.m. on September 1, 1998 (*see* Affidavit of Roebuck Environmental Manager Charisse G. McLeod, attached to this submission). Subsequently, the entire facility was permanently closed. *Id.*

ARGUMENT

Permanent Closure of the Facility Has Mooted this Case

A case is moot, and cannot be maintained, when " 'there is no reasonable expectation that the wrong will be repeated.' " *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 66 (1987), *quoting United States v. W. T. Grant Co.*, 345 U.S. 629, 633 (1953).

Respondent's permanent closure of the Roebuck facility at issue in this case rendered the case moot because no actual "case or controversy" continued to exist between the parties. Article III standing requires both an "injury in fact—an invasion of legally-protected interest which is (a) concrete and particularized . . . and (b) actual or imminent, not conjectural or hypothetical," and that the injury is capable of being "redressed by a favorable deci-

sion." *See Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-61 (1992) (internal quotations omitted). A plaintiff must be able to establish the standing requisites of injury in fact, causation, and redressability at each stage of the litigation. *Id.* Here, the alleged injury that was the subject of the Petitioner's complaint—ongoing and future violations of Respondent's NPDES permit due to incinerator wastewater discharges at the Roebuck facility —no longer exists, and cannot reasonably be expected to recur. The discharge has stopped entirely and the facility is closed. The injury is no longer "actual or imminent." *See Los Angeles v. Lyons*, 461 U.S. 95, 101-02 (1983) ("past exposure to illegal conduct does not in itself show a present case or controversy regarding injunctive relief . . . if unaccompanied by any continuing, present adverse effects"), *citing O'Shea v. Littleton*, 414 U.S. 488, 495-96 (1974).

Petitioners attempt to address the issue of whether the facility closure moots this case by making three unsupported and illogical arguments in their brief on the merits. First, Petitioners assert that since the NPDES permit is still in effect, Laidlaw "may discharge in the future whenever it cares to do so." (Brief For Petitioners, p. 8, n.7). As clearly demonstrated by the Affidavit of the Roebuck facility's Environmental Manager, Charisse G. McLeod, Petitioners' assertion is incorrect—the incinerator that generated the wastewater discharged under the NPDES permit has been removed and discarded. In fact, the entire facility is closed and most of the equipment has been dismantled and sold or discarded. (McLeod Affidavit).

Second, Petitioners imply that Laidlaw's retention of its NPDES permit indicates Laidlaw's intent to engage in future NPDES discharges. (Brief For Petitioners, p. 8, n.7). As shown by Ms. McLeod's affidavit, however, the

NPDES permit was kept in effect to make the Roebuck site more attractive to a prospective purchaser, not in contemplation of any future NPDES discharges by Laidlaw. Moreover, Ms. McLeod's affidavit references and incorporates a Consent Agreement, dated June 2, 1997, entered into between Laidlaw and the South Carolina Department of Health and Environmental Control (DHEC) that reflects, in pertinent part, that Laidlaw shut down the incinerator for economic reasons and that any violation of the Agreement would be deemed a violation of state law.

Third, Petitioners assert that even the permanent closure of the facility would not moot the case because they have members affected by alleged, but unidentified, Safety Kleen/Laidlaw NPDES discharges at other affiliated corporations. (*See* Brief For Petitioners, p. 8, n.7). This assertion borders on the frivolous. No facts are provided in support of this allegation. More fundamentally, the case before this Court involves past NPDES permit violations *only* at Respondent's facility located in Roebuck, South Carolina. Respondent Laidlaw Environmental Services (TOC), Inc. has no other facilities. Understandably, Petitioners cite no authority for the proposition that mootness can be avoided by claiming a possible deterrent effect that penalties imposed on *one* company might have on *another* company not in the lawsuit and not alleged to be in violation of any permit.

Laidlaw invites the Court's attention to the position taken in this case by the United States as *amicus curiae*, at page 15 of its brief, that "a defendant's voluntary cessation of permit violations does not moot a citizens suit *unless the defendant demonstrates that the permit violations will not recur.*" (Emphasis added). The permanent closure of the facility, as described in Ms. McLeod's affi-

davit, demonstrates just that. In fact, the United States, in taking the same basic position in its brief opposing *certiorari* in another case, predicted this exact scenario, and a corresponding finding of mootness:

> In the case of Clean Water Act citizens suits, the commencement of compliance, even if accompanied by the initiation of new procedures or the installation of new equipment, would not, as a general matter, completely moot a case because, for example, the same neglectful behavior that led to the violations may still recur in the form of neglectful adherence to the new procedures or neglectful operation and maintenance of the new equipment. Accordingly, we submit, a finding of mootness would generally be inappropriate absent a showing that the prospect of neglectful behavior itself is eliminated by, for example, *the permanent closing of the facility or the permanent cessation of all discharges. See, e.g., Pawtuxet Cove Marina, Inc. v. Ciba-Geigy Corp.*, 807 F.2d 1089 (1st Cir. 1986), *cert. denied* 108 S. Ct. 484 (1987) (defendant completed tie-in with the municipal treatment facility and ceased discharging under its NPDES permit). In the absence of such a showing, Article III standing would continue as well.
>
> *Simkins Industries, Inc. v. Sierra Club*, No. 88-660 (October Term, 1988), Brief for the United States as Amicus Curiae, at pages 11-12, n.11. (Emphasis added).

It is clear that the facts of this case satisfy even the Solicitor General's stringent standard for establishing mootness. Here, Laidlaw permanently closed, dismantled, and put the Roebuck facility up for sale for economic reasons. Laidlaw's consideration of this course of action was reported in the South Carolina press as early as January 28, 1997. (*See* "Laidlaw Mulling Options," attached

to this submission). By June 2, 1997—when Laidlaw and DHEC executed a Consent Agreement—the final decision had been made. These facts make it patently clear that the closure decision was not a ruse to avoid this Court's review of the Fourth Circuit's July 16, 1998 decision.

CONCLUSION

This case became moot prior to the grant of the Petition for Writ of Certiorari and, accordingly, the Writ should be dismissed, and the Fourth Circuit decision allowed to stand, because the Court had "no constitutional power to decide the merits" when it acted on the petition. *U.S. Vancorp v. Bonner Mall Partnership*, 513 U.S. 18, 27 (1994). The Respondent further requests that this Court suspend the remainder of the briefing schedule in this case pending its disposition of this Suggestion of Mootness.

Respectfully submitted,

DONALD A. COCKRILL *
NANCY W. MONTS
OGLETREE, DEAKINS, NASH,
SMOAK & STEWART, P.C.
The Ogletree Building
300 North Main Street
P.O. Box 2757
Greenville, SC 29602
(864) 271-1300
Counsel for Respondent

* Counsel of Record

Dated: June 9, 1999

APPENDICES

APPENDIX A

Spartanburg Herald Journal—1-28-97

LAIDLAW MULLING OPTIONS

Incinerator talking closure with DHEC

By GARY HENDERSON
Staff Writer

A Laidlaw Environmental Services official said Monday the company is considering shutting down its Roebuck incinerator because the facility is producing "poor financial results."

Henry Taylor, vice president of legal and regulatory affairs, said the plan to close the incinerator could be worked out with state officials by February.

But it will be much longer before the incinerator actually stops operating.

"It might take a year, but certainly less than two years," Taylor said.

The decision about the possible shutdown of the incinerator came during negotiations with S.C. Department of Health and Environmental Control over Laidlaw's operating permit, Taylor said.

Laidlaw is currently permitted to burn 4.5 tons of hazardous waste per hour year around. During the permit process, samples of gases being emitted from a trial burn of the incinerator must be submitted to the state's health authorities.

"There was a dispute about the capacity we could burn," Taylor said. "They wanted to go down to 3.7 tons, and they didn't think we provided quality samples. We felt we did."

Taylor said Laidlaw officials then decided to approach DHEC about closing the incinerator.

"I think they were happy to see us come with the idea," Taylor said, "but they were shocked."

Taylor said it is difficult to make a profit at the Roebuck facility because there are so many incinerators operating in the United States. He said kilns used for making cement now burn hazardous materials as fuel, reducing the demand for incinerators even further.

"It is highly competitive," Taylor said. "There is a real over-capacity—more incinerators than there is material to burn."

Taylor said if the incinerator closes, Laidlaw would still use the Roebuck site as a transfer and holding facility.

"This would become a collection point for small quantities that would be combined and shipped to another incinerator site," Taylor said.

Dever Melton, a Roebuck resident who has worked with other community activists to get the Laidlaw incinerator shut down, said he wants the entire facility closed.

"We will not be satisfied until there are no more toxic chemicals brought to Roebuck," Melton said, "We will not be satisfied until they stop hauling the stuff down the road or bringing it in on the rail cars."

Taylor said that if the incinerator is shut down, the facility's work force of 48 employees would probably be reduced.

"We don't have a feel for that yet," Taylor said, "We will need some different skills from the ones we have now, but the people working there will have an opportunity to continue working with Laidlaw."

Hazardous wastes are shipped to the Spartanburg County facility from more than 40 states. Laidlaw, a Canadian-

based company, operates collection and transfer sites in 11 states and in Canada.

A merger between Laidlaw and Rollins Environmental was announced earlier this month, which would give the merged company 120 facilities. Rollins Environmental is a New Jersey-based hazardous waste management company.

'We will not be satisfied until there are no more toxic chemicals brought to Roebuck.'

Dever Melton

Taylor said the merged company has 120 facilities around the country, which will probably be reduced to 100.

Explosions have occurred twice at the Roebuck plant in the last five months after several types of hazardous waste were transferred to a holding tank.

Officials evacuated eight homes in the area last week and advised residents of another 65 homes to stay inside after a 500-gallon tank exploded. The explosion emitted a large cloud of sulfurous vapors, which the wind blew about one-half mile from the site.

"If we have caused any fears or concern among the citizenry, we hope it will vanish," Taylor said. "We want our operation to be one that protects the people and the environment. It will continue to be."

Taylor said the negotiations with DHEC about the incinerators will continue.

"It's not final, even though we are moving in that direction," Taylor said.

APPENDIX B

IN THE SUPREME COURT
OF THE UNITED STATES

No. 98-822

FRIENDS OF THE EARTH, INC.,
Petitioners

v.

LAIDLAW ENVIRONMENTAL SERVICES (TOC), INC.,
Respondent

AFFIDAVIT

1. My name is Charisse G. McLeod and I am employed by Safety-Kleen Systems, Inc. (formerly Laidlaw) as the Environmental Manager at Safety-Kleen/Laidlaw's former hazardous waste treatment, storage and disposal facility at 301 Railroad Street, Roebuck, South Carolina 29376.

2. Past operations at the Roebuck facility included a liquid injection incinerator which was used to incinerate hazardous waste. This incineration process created wastewater which was passed through a wastewater treatment system and thereafter discharged into the North Tyger River pursuant to an NPDES permit issued by the South Carolina Department of Health and Environmental Control (DHEC).

3. On June 2, 1997, Laidlaw and DHEC entered into a consent agreement which provided, among other things, that Laidlaw would cease operation of the liquid injection

incinerator no later than August 31, 1998. A copy of that consent agreement is attached to my affidavit as Exhibit 1 and incorporated and made a part of this affidavit.

4. Pursuant to the terms of that consent agreement, Safety-Kleen/Laidlaw submitted a closure plan for the incinerator to DHEC which was approved by DHEC on September 15, 1998. Additionally, Safety-Kleen/Laidlaw decided to discontinue all operations at the Roebuck facility and the closure plan for the remaining operations was approved by DHEC on April 13, 1999.

5. At present, the entire facility is permanently closed and for sale. The incinerator which generated the wastewater that was discharged to the North Tyger River pursuant to Safety-Kleen/Laidlaw's NPDES permit has been removed and discarded, as have all waste feed systems from the tanks to the incinerator. The first and third stages of the wastewater treatment system have been removed and/or sold. Only the second stage (the Lancy metals removal system and filter press) remain and they are for sale. The last discharge under the NPDES permit was at 7:00 a.m. on September 1, 1998, and no customer waste was received after August 31, 1998. Whenever possible, we helped customers locate alternative disposal sites. Approximately 60 employees have been terminated and no employee who operated the wastewater treatment system is currently on site. In fact, there are only five employees (including myself) physically present at the Roebuck site and all five employees report out of the Company's headquarters in Columbia, South Carolina.

6. It would be unlawful to discharge water to the North Tyger River under the NPDES permit and Safety-Kleen/Laidlaw has no intention of doing so. More practically, it would be impossible to do so because most of

the system (including the incinerator) has been dismantled and discarded or sold.

7. I have been shown footnote 7 at page 8 of the Petitioner's Brief in *Friends of the Earth, et al. v. Laidlaw Environmental Services (TOC), Inc.*, No. 98-822, where it is stated that "since Laidlaw's NPDES permit is still in effect, it may discharge in the future whenever it cares to do so." That is simply incorrect. It is impossible to discharge wastewater at the Roebuck facility under the NPDES permit since there is no waste to incinerate and no incinerator to generate wastewater.

8. Safety-Kleen/Laidlaw took steps to keep the NPDES permit in effect because to do so might make the site more attractive to a prospective purchaser. The permit has not been kept in effect in contemplation of any future NPDES discharges by Safety-Kleen/Laidlaw.

Dated this 21st day of May, 1999.

/s/ Charisse G. McLeod
CHARISSE G. MCLEOD

[Notary Omitted]

APPENDIX C

THE STATE OF SOUTH CAROLINA
BEFORE THE DEPARTMENT OF HEALTH
AND ENVIRONMENTAL CONTROL

IN RE:
LAIDLAW ENVIRONMENTAL SERVICES (TOC), INC.
SCD 981 467 616
BAQ PERMIT No. 2060-0064
Spartanburg County

CONSENT AGREEMENT
97-15-HW
97-43-A

This Consent Agreement is being entered into by the South Carolina Department of Health and Environmental Control, hereafter the Department, and Laidlaw Environmental Services (TOC), Inc., a South Carolina corporation, pursuant to the Department's authority under 25 S.C. Code Ann. Regs. 61-79 (Supp. 1996), promulgated pursuant to the South Carolina Hazardous Waste Management Act, S.C. Code Ann. § 44-56-10 *et seq.* (Supp. 1996) and the South Carolina Pollution Control Act § 48-1-10 *et seq.*, 1976, as amended.

FINDINGS OF FACT

1. Laidlaw Environmental Services (TOC), Inc., hereafter TOC, USEPA ID No. SCD 981 467 616, operates a commercial hazardous waste treatment, storage and disposal facility in Spartanburg County, South Carolina.

The local address of the facility is 301 Railroad Street, Roebuck, South Carolina 29376. State regulations authorize the facility to manage hazardous waste. In November 1980 the facility received interim status under the Resource Conservation and Recovery Act (RCRA). On September 30, 1988, the Department's Bureau of Solid and Hazardous Waste Management (BSHWM) issued a Part B permit to the facility and the U.S. Environmental Protection Agency (USEPA) issued a Hazardous and Solid Waste Amendments (HSWA) permit to the facility. The Part B permit issued by the Department was modified in 1991 to require post-closure care of closed hazardous waste surface impoundments and to include additional waste codes. The Part B permit has not become effective because of appeals by the permittee and others. Consequently, the facility operates under interim status. The HSWA permit has become effective and has been amended several times.

2. The Department's Bureau of Air Quality (BAQ) issued Air Construction Permit No. 2060-0064-CA on December 12, 1985 to TOC. The Construction Permit authorized the modification and operation of a hazardous waste incinerator system with an incineration capacity of 4.5 tons per hour. On November 21, 1990, the BAQ issued Air Operating Permit No. 2060-0064 to TOC. The Operating Permit was appealed and has not become effective. On December 15, 1996, TOC submitted a Title V Air Operating Permit Application to the BAQ. This application is currently under review.

3. Operations at the facility include a liquid injection incinerator with a steam generating boiler system and air and water pollution control systems. The incinerator has an interim status thermal destruction treatment limit of 4.5 tons per hour. The air pollution control system for

the incinerator includes a baghouse and a wet scrubber. Other equipment at the facility is controlled by either carbon absorption units or is subject to emission limits established to comply with South Carolina Air Pollution Control Regulation 61-62.5, Standard Number 8. The water pollution control system is a scrubber waste water treatment system composed of a pH adjuster, Lancy unit, carbon adsorption and other types of filtration. The facility has been determined by the BSHWM to have 839,500 gallons of tank storage capacity and 64,230 gallons per day of treatment in tank capacity. Presently, the facility has 48,840 gallons of interim status container storage capacity.

4. On January 16, 1986 when TOC was purchased from its prior owner, the site had groundwater contamination believed to have been caused by contamination from several ponds or surface impoundments previously operated at the site. TOC entered into a 3008(h) RCRA Corrective Action Order with the USEPA to address the contamination. TOC has constructed and installed a system to remediate affected groundwater. This system will be operated until all statutory and regulatory requirements with respect to corrective action are achieved.

5. It is TOC's position that marketplace realities have had a significant effect on the commercial success of incineration activities at TOC. Many of the hazardous and nonhazardous liquid waste streams that can be incinerated at TOC are now being burned at cement kilns and other boilers and industrial furnaces. This competitive incineration market has driven pricing below that level which can profitably support the high costs associated with the operation of a RCRA regulated incinerator at the Roebuck, South Carolina location.

6. After making its marketplace analysis, TOC informed the Department's Bureau of Land and Waste Management, formerly known as the Bureau of Solid and Hazardous Waste Management (BSHWM), that it desired to modify its operational platform at the facility. To effect this result, TOC submitted a revised Part A application on April 10, 1997. The revised Part A application was approved by the Department on April 17, 1997.

7. Of the 839,500 gallons of interim status tank storage capacity (S02) referenced in paragraph 3 above, to date 547,780 gallons of tank storage capacity has been constructed. The remaining 291,720 gallons of tank storage capacity has not been constructed. TOC desires to operate additional container storage capacity (S01) equal to the as yet unconstructed tank storage capacity.

8. TOC desires to convert the incineration capacity (T03) of 4.5 tons per hour to an equivalent amount of treatment capacity defined by the process codes of T01, treatment in tanks, and T04, other treatment.

9. Since the issuance date of Air Construction Permit Number 2060-0064-CA, the facility has complied with state emission limits during source evaluations as required by the Construction Permit and by South Carolina Air Pollution Control Regulation 61-62.5, Standard Number 3. The facility has obtained additional construction permits for a replacement baghouse and other new air emission control devices.

10. Upon execution of this Agreement, TOC is willing to initiate the design and subsequently the construction of a new traffic route to the facility.

11. TOC has outstanding matters which involve the USEPA. On September 29, 1994 TOC executed a 3013

Order with USEPA. To date, this Order has not been modified. TOC also has a HSWA permit renewal application pending with USEPA, Region IV.

NOW, THEREFORE, IT IS AGREED pursuant to S.C.Code Ann. §§ 44-56-40, *et seq.* (Supp. 1995) and the South Carolina Pollution Control Act § 48-1-10 *et seq.*, 1976, as amended, that:

1. TOC shall cease operation of the liquid injection incinerator no later than August 31, 1998. Until that date, TOC may continue to operate the incinerator provided that all regulatory requirements for operation of the incinerator are met.

2. Nothing in this Consent Agreement will excuse TOC from complying with all applicable generator and interim status treatment, storage, and disposal facility operating regulations, as well as, any other state and federal environmental regulations and permitting requirements.

3. As of August 31, 1998, TOC will no longer have interim status for treatment of waste by incineration (T03). The 4.5 tons per hour of incineration capacity may be converted to an equivalent amount of treatment capacity which is defined by the process codes, T01, treatment in tanks, and T04, other treatment, provided that a process design proposal from TOC is approved by the Department. The Department recognizes that TOC would like to complete construction of the converted treatment capacity before the date it surrenders its interim status incineration capacity and will therefore review the process design proposal in a timely manner. The process design proposal shall consist of a description of the proposed process design and the calculated caacity as derived from all or part of the 4.5 tons per hour of incineration capacity. The cumulative total of the converted treatment capacity, which shall consist of fuels blending, shredding,

stabilization/solidification, and metals precipitation, shall not exceed the equivalent of 4.5 tons per hour. The converted treatment capacity may be utilized in addition to the existing 64,230 gallons per day of approved treatment in tank capacity (T01) or utilized in whole or part for other treatment (T04). TOC may construct the equivalent treatment capacity after the effective date of this agreement, receipt of approval of the process design proposal, and receipt of the appropriate permits from other entities including, but not limited to, the BAQ. All changes to the faciilty pursuant to this Agreement must comply with R.61-79.270.72(b) which refers to reconstruction. TOC can not use this newly constructed equivalent capacity until it ceases to operate the incinerator and compliance with R.61-79.270.72(b) is demonstrated.

4. No later than 60 days from the execution date of this Agreement, TOC shall submit to the Department's Bureau of Land and Waste Management a closure plan for the liquid injection incinerator, boilers, the stack, baghouse, induction fan and associated duct work, venturi quench and wet scrubber. The plan shall satisfy the applicable requirements of R. 61-79.265 Subpart G.

5. No later than 180 days from the execution date of this Agreement, TOC shall submit to the Department's Bureau of Land and Waste Management a revised Part B permit application for the facility consistent with the Part A application approved by the Department on April 17, 1997 and the Part B application will not include a request to operate an incinerator. Any interim status incineration capacity included in this permit application will be terminated.

6. No later than August 31, 1998, TOC will withdraw its appeal of the BAQ November 21, 1990, air permit decision.

7. TOC shall submit to the Department's Bureau of Land and Waste Management quarterly progress reports discussing how the 291,720 gallons of unconstructed tank storage capacity (S02) is being converted to container storage capacity (S01) and how the treatment capacity converted from the 4.5 tons per hour of incineration capacity is being established. The first progress report will be due September 1, 1997 and the final report will state how the converted tank storage capacity exists as container storage capacity and how the converted treatment capacity has been established. In no event will container storage under interim status exceed 340,560 gallons which represents the combination of 48,840 gallons of existing container storage capacity and the 291,720 gallons of unconstructed tank storage capacity.

8. Should TOC desire to change its operation methods to affect a source of air pollution, i.e., to install or modify control equipment or remove a source of air contamination from service, TOC shall submit a request for an air permit determination, or a request to modify the facility's Title V permit, and/or submit a construction permit application or such other appropriate authorization request. TOC shall not proceed with the change or addition without obtaining either a written response approving the request or without obtaining a construction permit in accordance with South Carolina Air Pollution Control Regulation 61-62.1, Section II, A, if necessary.

9. TOC shall continue to comply with all conditions and provisions of outstanding orders entered into with the Department and effective permits issued by the Department (including the BAQ Title V permit, if applicable) until otherwise authorized by the appropriate Department entity.

10. Within five (5) days of the execution date of this Agreement, TOC will provide the Department with notifi-

cation that it has contacted USEPA to confer with the Agency about the matters referenced in paragraph 11 of the Findings of Fact.

11. TOC shall advise the Department of the general location of the new traffic route and associated design and construction milestones within one hundred eighty (180) days of the execution of this Agreement.

12. The Department and TOC recognize that circumstances may arise which may affect due dates and deadlines set out in this Agreement. Should such circumstances arise, TOC shall notify the Department in writing, (fax transmission being acceptable) no later than fourteen (14) days after the discovery of the occurrence of any event which TOC would contend is a circumstance causing an unavoidable delay or need for a schedule adjustment. The written notification to the Department shall attempt to anticipate the length of delay, generally describe the cause or causes of the circumstance, and indicate the measures, if possible, to be taken by TOC to minimize the effect on any schedule. In the event the Department concurs that an unavoidable situation has occurred, this Agreement, including incorporated documents and any affected schedules, shall be modified in the event the unavoidable situation affects such schedules. Any such modifications or revised schedules shall be incorporated by reference as part of this Consent Agreement.

IT IS FURTHER AGREED that failure to meet deadlines established herein or any other violation of the provisions of this Agreement may be deemed a violation of the South Carolina Hazardous Waste Management Act and the South Carolina Pollution Control Act and therefore shall be deemed unlawful. Upon ascertaining any

such violation, the Department may initiate action to obtain compliance with this Agreement and the aforesaid Acts.

THE SOUTH CAROLINA DEPARTMENT OF HEALTH AND ENVIRONMENTAL CONTROL

Date: 6/2/97

By: /s/ Douglas E. Bryant
DOUGLAS E. BRYANT
Commissioner

We Consent:

LAIDLAW ENVIRONMENTAL SERVICES (TOC), INC.

Date: 5-30-97

By: /s/ [Illegible]

THE SOUTH CAROLINA DEPARTMENT OF HEALTH AND ENVIRONMENTAL CONTROL

/s/ Hartsill W. Truesdale
HARTSILL W. TRUESDALE, P.E.
Chief
BUREAU OF LAND & WASTE MANAGEMENT

Date: 06/02/97

/s/ Richard D. Sharpe
for JAMES A. JOY, P.E.
Chief
BUREAU OF AIR QUALITY CONTROL

Date: 06/02/97

/s/ [Illegible]
Approved by: Legal Office

Date: 6-2-97

pab:bkb